

## 24SMCV04903 24SMCV04903

County: los-angeles

Division: Civil Law and Motion

Department: I

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The motion for leave to amend is DENIED. Plaintiff filed this action against defendants. Plaintiff seeks to amend the complaint and defendants oppose.

Plaintiff states that the opposition was not served on him in a timely fashion. The court will inquire as to that issue. The deadline for service was August 20, but plaintiff states he did not get it until August 25. That gave him only one court day to file his reply. However, defendant attaches a proof of service stating that the opposition was served by email on August 18. If that POS is accurate—and there ought to be metadata to prove it—then it was timely. Worse, the court will want to know why plaintiff accuses defendant of lying in that regard. On the other hand, if the POS is not accurate, the defendant will have some explaining to do as to why the person serving the papers committed perjury. That said, the opposition did not really change the outcome for the reasons below.

Plaintiff wants to add claims against defendants by adding details and asserting statutory violations.

Leave to amend is freely granted absent prejudice. (Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739.) This is plaintiff's third attempt at an amended pleading.

Plaintiff still fails to comply with Rule of Court 3.1324. That requires that he include a copy of the amended complaint, state the allegations that he proposes to delete, and state what allegations he proposes to add.

This motion does not do that. And

there is no redlined copy of the proposed pleading that might otherwise satisfy the requirement. And the court will not grant the motion based on attempts to cure the problem in reply. Further, the causes of action are not numbered, as required in Rule 2.112.

Plaintiff should try again and try to follow the rules. The likelihood is that if he can file a proper motion, it will be granted given the liberality standard articulated above. But the fact is that if this is important enough for plaintiff to pursue, he can spend the time and effort to comply with the rules. The court notes that other self-represented litigants are able to do so.